A corporation is not deemed a citizen within the clause of the Constitution of the United States protecting the privileges and immunities of citizens of the United States from being abridged or impaired by the law of a State; and the liberty guaranteed by the Fourteenth Amendment against deprivation without due process of law is that of natural, not artificial, persons.

A State may in the exercise of its police power regulate the admission of persons to places of amusement, and, upon terms of equal and exact justice, provide that persons holding tickets thereto shall be admitted if not under the influence of liquor, boisterous, or of lewd character, and such a statute does not deprive the owners of such places of their property without due process of law; so held as to California statute.

148 California, 126, affirmed.

THE facts are stated in the opinion.

Mr. William S. Goodfellow, for plaintiff in error, submitted:

The reason for excluding the defendant in error from the grounds was that he insisted upon publishing a newspaper called a racing chart or form chart, whereas the association had sold the exclusive privilege so to do to other persons. The association had the right to make such a contract, perhaps for the protection of the public, and for the reputation of its own grounds; as also for the profits to be directly derived from the contract.

Apart from this special statute, a ticket of admission to a place of amusement is, and always has been, merely a license. The authorities to this effect were cited in the former case, and the Supreme Court of California held in conformity with them. But if this statute be valid it is no longer possible for two persons to contract for the issuance of a license to a place of amusement. This statute also makes it a *penal offense*, 140 California, 364, for a person who has made a civil contract to violate it. It is understood that every person has that right, of course holding himself responsible in damages.

The plaintiff in error is a private corporation, conducting a private business, upon its own private premises. There is no suggestion that it was in anywise exercising a public use, or that it had ever received aid or special privileges from the